Loomis appealed to the Wisconsin Supreme Court, arguing that the judge violated his right to due process. Neither the judge nor Loomis understood how the COMPAS algorithm made its evaluation, and when Loomis asked to get a full explanation, the request was denied. The COMPAS algorithm was the private property of the Northpointe company, and the company argued that the algorithm's methodology was a trade secret.[28] Yet without knowing how the algorithm made its decisions, how could Loomis or the judge be sure that it was a reliable tool, free from bias and error? A number of studies have since shown that the COMPAS algorithm might indeed have harboured several problematic biases, probably picked up from the data on which it had been trained.[29]

In *Loomis v. Wisconsin* (2016) the Wisconsin Supreme Court nevertheless ruled against Loomis. The judges argued that using algorithmic risk assessment is legitimate even when the algorithm's methodology is not disclosed either to the court or to the defendant. Justice Ann Walsh Bradley wrote that since COMPAS made its assessment based on data that was either publicly available or provided by the defendant himself, Loomis could have denied or explained all the data the algorithm used. This opinion ignored the fact that accurate data may well be wrongly interpreted and that it was impossible for Loomis to deny or explain all the publicly available data on him.

The Wisconsin Supreme Court was not completely unaware of the danger inherent in relying on opaque algorithms. Therefore, while permitting the practice, it ruled that whenever judges receive algorithmic risk assessments, these must include written warning for the judges about the algorithms' potential biases. The court further advised judges to be cautious when relying on such algorithms. Unfortunately, this caveat was an empty gesture. The court did not provide any concrete instruction for judges on how they should exercise such caution. In its discussion of the case, the *Harvard Law Review* concluded that 'most judges are unlikely to understand algorithmic risk assessments'. It then cited one of the Wisconsin Supreme Court justices, who noted that despite getting lengthy explanations about the algorithm, they themselves still had difficulty understanding it.[30]

Loomis appealed to the US Supreme Court. However, on 26 June 2017, the court declined to hear the case, effectively endorsing the ruling of the Wisconsin Supreme Court. Now consider that the algorithm that evaluated Loomis as a high-risk individual in 2013 was an early prototype. Since